

25NWLC45370 25NWLC45370

County: los-angeles

Division: Civil Law and Motion

Department: Z

Hearing date: 2026-07-13

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CZ%2C07%2F13%2F2026

Source SHA-256: 025349a4b7715a5b66e61e5f992a53ff316c657458b5fcfcfda875defe006d20

Case Number: 25NWLC45370 Hearing Date: July 13, 2026 Dept: Z

The Court finds Plaintiff has met the initial burden of showing that there is no defense to the causes of action by proving each element of the causes of action entitling Plaintiff to judgment.

On August 13, 2025, Plaintiff WELLS FARGO BANK filed this credit card collections action against Defendant STEPHANIE D GUERRA. Plaintiff extended credit to Defendant through a credit card ("Account"). (Complaint at p. 4.) Defendant used the card to purchase goods, services, and/or cash advances. (Complaint at p. 4.) Defendant, in exchange for use of the card, agreed to Plaintiff for the principal, fees, and interest on the Account. (Complaint at p. 4.) Plaintiff alleges that Defendant failed to make payments owed on the Account. (Complaint at p. 4.) Plaintiff's Complaint alleges two causes of action: Breach of Written Contract and Breach of Implied Contract.

The Court has read and reviewed Plaintiff's Motion for Summary Judgment, Separate Statement of Undisputed Facts, Declaration of Plaintiff's Most Qualified Witness and attached exhibits, and Declaration of Counsel and attached exhibits with Responses to Requests for Admissions. The Court finds that Plaintiff has met its initial burden of establishing all elements in support of the breach of contract claims. There is no triable issue of material fact.

The burden having shifted to Defendant, the Court finds Defendant has failed to set forth specific facts showing that a triable issue of material fact exists as to the causes of action or a defense thereto as required by CCP 437c(p)(1).

The court finds that Plaintiff is entitled to judgment as a matter of law and GRANTS the Motion for Summary Judgment. Judgment to enter in favor of Plaintiff for the principal sum of \$9,670.60, plus court costs of \$815.00, for a total judgment of \$10,485.60.